

The *Griffith* view on prosecutorial immunity became the clear majority rule on the issue.¹⁹ The question eventually came to this Court on writ of certiorari to the Court of Appeals for the Second Circuit. In *Yaselli v. Goff*, 12 F. 2d 396 (1926), the claim was that the defendant, a Special Assistant to the Attorney General of the United States, maliciously and without probable cause procured plaintiff's grand jury indictment by the willful introduction of false and misleading evidence. Plaintiff sought some \$300,000 in damages for having been subjected to the rigors of a trial in which the court ultimately directed a verdict against the Government. The District Court dismissed the complaint, and the Court of Appeals affirmed. After reviewing the development of the doctrine of prosecutorial immunity, *id.*, at 399-404, that court stated:

"In our opinion the law requires us to hold that a special assistant to the Attorney General of the United States, in the performance of the duties imposed upon him by law, is immune from a civil action for malicious prosecution based on an indictment and prosecution, although it results in a verdict of not guilty rendered by a jury. The immunity is absolute, and is grounded on principles of public policy." *Id.*, at 406.

After briefing and oral argument, this Court affirmed the Court of Appeals in a *per curiam* opinion. *Yaselli v. Goff*, 275 U. S. 503 (1927).

The common-law immunity of a prosecutor is based upon the same considerations that underlie the common-

¹⁹ *Smith v. Parman*, 101 Kan. 115, 165 P. 663 (1917); *Semmes v. Collins*, 120 Miss. 265, 82 So. 145 (1919); *Kittler v. Kelsch*, 56 N. D. 227, 216 N. W. 898 (1927); *Watts v. Gerking*, 111 Ore. 654, 228 P. 135 (1924) (on rehearing). Contra, *Leong Yau v. Carden*, 23 Haw. 362 (1916).